

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 07/15/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Katz – Probate (30-2022-01251727)	
2	Baldauf – Minor’s Compromise (2026-01575634)	Motion to File Under Seal Petitioner Robert Baldauf’s Motion to Seal Documents (ROA 3) is GRANTED. “Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) Records may be sealed only if the court expressly finds facts that establish: “(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).) The party seeking to seal the documents has the burden of proving such facts. (See <i>H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894–895.) Here, Petitioners seek to seal the unredacted versions of: (1) Petition for Expedited Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person

		with a Disability (ROA 7); (2) Ex Parte Application for Appointment of Guardian ad Litem—Civil and Family Law (ROAs 17 & 20); (3) Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (ROA 8); and (4) Ex Parte Order Appointing Guardian ad Litem—Civil and Family Law (ROAs 18 & 24). The admissible evidence before the court is sufficient to establish that there is an overriding interest that overcomes the right of public access to the unredacted versions of those documents. The admissible evidence is also sufficient to establish a substantial probability that a failure to seal the redacted portions will prejudice that overriding interest. That proposed sealing is narrowly tailored, and no less restrictive means exists to achieve the overriding interests other than sealing the documents. The motion is GRANTED and the unredacted documents will be sealed. Petitioner is directed to give notice.
3	Smith – Trust (2023-01355718)	Motion to Compel; Motion for Order Petitioner Brian Alexander Smith’s Motion for Order Permitting Alternate Service and Electronic Service (ROA 569) is DENIED. Petitioner Brian Alexander Smith’s Motion to Compel Compliance with Deposition Subpoena for Production of Business Records [from Fay & Lawler] (ROA 556) is DENIED. <u>Motion for Order Permitting Alternative Service.</u> By his motion, Petitioner seeks an order permitting alternate service on respondent Lou Ann Kelly by email and permitting electronic service on all counsel of record. He asserts he has not been able to serve Lou Ann Kelly “by standard methods despite reasonable diligence” and that printing and mailing numerous filings has imposed a financial burden. Petitioner does not specifically identify the documents he would like to be able to serve by email or other alternate means on Lou Ann Kelly and he does not identify the documents he would like to be able to serve by email or other alternate means on the remaining parties. While the court might have authority to allow for email or another alternate method of serving certain

		documents on certain people, it would not be appropriate to give Petitioner a blank check to serve by email every document in this proceeding on every person entitled to service. Further, Petitioner does not cite any legal authority in support of his request. For example, the court is not aware of any statute or appellate opinion that would allow the court to permit Petitioner to serve a deposition subpoena for production of business records on the deponent by email, or in any way other than personal service. (See Code Civ. Proc., § 2020.220(b) & (c)(2); Prob. Code, § 1000.) This lack of authority is further complicated by the second issue discussed above, because the type of service required varies by the type of document/notice being served and the person receiving the service. (See, e.g., Prob. Code, §§ 851 [notice of hearing on petition under section 850, et seq.], 17203 [notice of hearing on petition under section 17200, et seq.].) Nothing in this order limits Petitioner's right to ask the court to allow him to serve specific documents to specific people in different ways, and any right Petitioner may have to ask the court to dispense with notice of specific documents or notices on specific people. Any such requests must be in a procedurally appropriate way and supported by an adequate factual basis and citations to applicable law. <u>Motion to Compel.</u> By this motion, Petitioner seeks to compel Fay & Lawler to produce further documents in response to a subpoena. Neither the motion nor the accompanying declaration include the subject subpoena. Accordingly, the court has nothing upon which to issue an order compelling appearance and production. (The court notes the subpoena was untimely included in the reply brief.) Further, Fay & Lawler's opposition is supported by a declaration from Thomas C. Lawler averring all responsive documents within his possession have been produced and nothing has been withheld. Accordingly, there is nothing for the court to compel. The court will provide notice.
4	Slotkin – Trust (2024-01443912)	Motion to Enforce Settlement Petitioners Deborah Carpenter and Randal Slotkin's Motion to Enforce Settlement Order Pursuant to Code of Civil Procedure §664.6 and for Attorneys Fees and Costs Under Terms 10 and 18 of the June 10, 2025 Settlement Order (ROA 199) is DENIED.

In April 2024, Petitioners—two of three surviving children of Estelle B. Slotkin (Estelle)—initiated a proceeding in this court. (ROA 2.) They made various claims against Respondent Scott Slotkin—Estelle’s third surviving child—including that he had unduly influenced Estelle to execute a durable power of attorney making Respondent her attorney and had taken property from the Estelle B. Slotkin Trust. (*Id.*)

In April 2025, the proceeding was resolved by a Settlement Agreement and Mutual General Release Regarding the Estelle B. Slotkin Trust (Settlement, ROA 118.) The Settlement was approved by the court on June 6, 2025. (*Id.*) Pursuant to the terms of the Settlement, Petitioners dismissed their petition with prejudice. (ROAs 124, 161, and 162.)

The motion before the court this day asserts Respondent violated Term 3 of the Settlement. Term 3 reads, in full: “For the next two months, the Trustee shall continue to pay and support Estelle’s current care manager, Aptiva, and her full-time caregiving service. If by June 21, 2025, Aptiva cannot aid Estelle in accepting her caregivers and/or Aptiva determines that Estelle cannot continue to be safely maintained in her home while refusing care, then Estelle shall be moved to a memory care facility. The selection of the memory care facility shall be determined by collaboration of Deborah, Randy [Petitioners], Scott [Respondent], and Aptiva. If Deborah, Randy, and Scott cannot agree, then the Trustee shall be the final decisionmaker.” Petitioners assert Respondent breached Term 3 by interfering with Estelle’s care, medication, and placement; filing ex parte applications in July and December 2025; and filing a petition in January 2026 seeking to enforce an advance health care directive. Based on the alleged breaches of the Settlement, Petitioners seek to recover \$64,722.34 in fees and costs pursuant to § 10 of the Settlement.

As an initial matter, the court does not have jurisdiction over this motion under Code of Civil Procedure section 664.6 (§ 664.6). Although § 18 of the Settlement requests that the court retain jurisdiction under § 644.6, Petitioners dismissed the proceeding **with** prejudice. In order for the court to retain jurisdiction under § 664.6, the proceeding must be dismissed

without prejudice. Section 664.6(a) reads in full: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties **without prejudice** and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Emphasis added.) Section 664.6(f) reads, in pertinent part: “If the Court enters judgment or dismisses the case **without** prejudice pursuant to this section, the following shall apply: [¶] (1) A party may . . . if the terms of a settlement are not performed [file] a motion based upon such terms.” (Emphasis added.) This version of § 664.6 was effective January 1, 2025—prior to the date of the Settlement. Under the revised statutory language, once a settlement is fulfilled, the parties may dismiss the matter with prejudice. (§ 664.6(g) [“Nothing in this section shall preclude a party from filing a request for dismissal **with prejudice** after the court has dismissed the case **without prejudice** pursuant to this section”], emphasis added; Assem. Com. on Judiciary, Rep. on Assem. Bill No. 1756 (2023-2024 Reg. Sess.), as amended Sept. 6, 2023, p. 2. [“The Clerk of the Court must accept any motion, notice, or other document properly filed by a party after entry of judgment or dismissal **without prejudice**”] emphasis added.)

Even if the Court had jurisdiction under § 664.6, the result would not be different. The purpose of § 664.6 is “to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal. App. 4th 793, 809.) “The power of the trial court under [§ 664.6], however, is extremely limited. ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to *create* the material terms of the settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon.’” (*Hernandez v. Board of Education* (2004) 126 Cal.App.4th 1161, 1176.)

		Although the motion is titled as a motion to enforce the Settlement, Petitioners do not seek to enforce Term 3 or any other of the 15 specifically enumerated "Settlement Terms." Indeed, they could not have sought to enforce Term 3 because, as Petitioners acknowledge in their motion, Estelle passed away before their motion was filed. Accordingly, instead of seeking to enforce Term 3 or any other term, Petitioners seek an award of attorney's fees under Section 10 of the Settlement based on the assertion that Respondent breached Term 3. Section 10 reads, in full: "Except as to the fees incurred by the Trustee in his administration and defense of the Trust, the Parties, shall bear their own attorney's fees and costs incurred in the matters described herein. However, in the event a Party is required to initiate a claim, petition, motion, or other proceeding to enforce the settlement agreement the prevailing Party in said action shall be entitled to recover its reasonable attorney's fees and costs from the Party breaching this Agreement." Under the terms of the Settlement, Petitioners can recover fees and costs if they "initiate[d] a claim, petition, motion, or other proceeding to enforce the settlement agreement." Petitioners did not initiate any claim, petition, motion, or other proceeding to enforce Term 3 or any of the other 15 settlement terms. They filed a motion seeking fees. Accordingly, they cannot recover fees under the terms of the Settlement. The motion is DENIED. Respondent is directed to give notice.

